

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2024PRCE023680: IN THE MATTER OF LEANORE I. ROGERS
08/18/2026 in Department J6
Account and Report**

The court intends to reduce the bond to \$452,699.00. The court intends to grant the petition for substituted judgment.

Re the First Account and Reports:

The court requires a verified supplement discussing the following:

The beginning POH, \$252,015.17, does not match the I&A filed, \$252,315.17. The court intends to consider the \$300.00 difference de minimis.

Having a category of personal expenses for conservatee and then stating "Amazon" or "Apple" as an explanation is insufficient. These personal expenses total \$4,276.06 and require further explanation.

The many FedEx, Adobe, USPS charges need further explanation.

Trust Asset Income and Expenses: The additional Property Received, in the temporary conservatorship and general conservatorship, was monies received from the Leonore I. Rogers Revocable Trust.

Additional property received is required to be inventoried and appraised. A Supplemental I&A was not filed.

The conservatorship is paying for mortgages, utilities, repairs, taxes, handyman fees, etc. for the trust real property assets.

The only explanation given is in the Supplement which states: "Utilities for Rentals: The accountings report the payment of some utilities for the rental properties. Bunny had set up the leases to provide that she paid the water, sewer and electricity bills for 1311 Hull Place, 1251 7 Street and 122-126 East A Street. 446 Vista Del Sol became a rental property in 2019. Bunny set up the lease for this property to provide that she pays for internet."

The utility payments are trust expenses not conservatorship expenses.

Why is the trust income and expenses part of the conservatorship estate accounting? The explanation that the conservatee is entitled to the income and

that she, when she was acting as trustee of her trust, agreed that utilities would be paid for some rentals is not sufficient. The trust estate should manage the rents (income) and expenses for the trust assets and then provide net income to the conservatorship estate monthly/quarterly/annually, whatever is most reasonable.

Having the conservatorship estate pay trust expenses is not appropriate.

The court orders a verified supplement filed on or before 09/11/26 and is set for hearing on 09/22/26.

The clerk shall give notice.